

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Team # 4	CCRB Case #: 201410215	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 10/05/2014 2:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/5/2016	Precinct: 67
Date/Time CV Reported Sun, 10/05/2014 3:15 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 10/05/2014 3:15 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Kaiser	31061	952917	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edwin Duran	19219	952700	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Kaiser	Discourtesy: PO Joseph Kaiser acted rudely toward § 87(2)(b)	A . Unsubstantiated
B . POM Joseph Kaiser	Off. Language: PO Joseph Kaiser made remarks to § 87(2)(b) based upon perceived sexual orientation.	B . Unsubstantiated

Case Summary

On October 5, 2014, at approximately 2:55 a.m., § 87(2)(b) was standing in the lobby of his apartment building at § 87(2)(b) in Brooklyn when he was approached by PO Joseph Kaiser and PO Edwin Duran for an open container of alcohol. PO Kaiser asked § 87(2)(b) for his identification, which § 87(2)(b) provided, and returned to his patrol car to write a summons (encl. 16). § 87(2)(b) approached the patrol car to see what was taking so long, and PO Kaiser ordered § 87(2)(b) to back away from the vehicle. When PO Kaiser was finished, he exited the vehicle, and approached § 87(2)(b) to issue him the summons, which was wrapped around his identification. § 87(2)(b) refused to take the documents from PO Kaiser, at which point, PO Kaiser allegedly threw § 87(2)(b)'s summons and identification on the ground (**Allegation A**). PO Kaiser then got back into his vehicle, and drove away. As PO Kaiser drove away, he allegedly called § 87(2)(b) a “batty boy” over the vehicle loudspeaker (**Allegation B**).

Mediation, Civil, and Criminal Histories

On December 9, 2014, a Notice of Claim Inquiry was submitted to the New York City Comptroller’s office, and will be included in the case file upon its receipt. § 87(2)(b) accepted mediation at the time of his CCRB interview. However, § 87(2)(b) contacted the CCRB on October 15, 2014, and stated he wanted to have his complaint investigated. § 87(2)(b), § 86(1)(3)&(4), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).
- PO Kaiser has been a member of service for two years, and has no prior CCRB complaints (encl. 1).

Attempts to Contact Witnesses

During his CCRB testimony, § 87(2)(b) identified his neighbor, § 87(2)(b) § 87(2)(b) as a possible witness to the incident. A search of Lexis Nexis confirmed the address and telephone number for § 87(2)(b) § 87(2)(b). Despite completing the agency-required contact attempts, the CCRB has been unable to establish contact with § 87(2)(b) § 87(2)(b).

Event information identified a § 87(2)(b) as a possible witness to the incident. A search of Lexis Nexis provided an address and telephone number for § 87(2)(b). Despite completing the agency-required contact attempts, the CCRB has been unable to establish contact with § 87(2)(b).

A search of the NYC Department of Corrections Inmate Lookup website conducted on December 10, 2014, confirmed that neither § 87(2)(b) nor § 87(2)(b) are incarcerated.

Findings and Recommendations

Allegation A – PO Joseph Kaiser acted discourteously toward § 87(2)(b)

It is undisputed that § 87(2)(b) refused to take the documents from PO Kaiser's hand. In his CCRB testimony, § 87(2)(b) stated that PO Kaiser exited from his vehicle, and walked towards him, with his hand outstretched. In PO Kaiser's outstretched hand, § 87(2)(b) observed a summons, but did not see his identification. § 87(2)(b) said, "Give me my ID. I don't need no ticket because I wasn't drinking no beer." PO Kaiser then threw the summons to the ground, which was wrapped around § 87(2)(b)'s identification (encl. 7-9).

In his CCRB testimony, PO Kaiser testified that he approached § 87(2)(b) with the summons wrapped around his identification. PO Kaiser believed § 87(2)(b)'s identification was visibly sticking out from the sides of the wrapped summons. PO Kaiser told § 87(2)(b) "Here you go, Sir" while reaching his hand out with the summons and identification. § 87(2)(b) refused to take the documents, and replied, "No. You're going to hand it to me." PO Kaiser was unsure of what § 87(2)(b) meant by this. PO Kaiser responded to § 87(2)(b) that he was in fact handing his identification back to him. § 87(2)(b) told PO Kaiser that since he had taken his identification from him, he needed to hand it back to him, to which PO Kaiser replied, "Well, here's your I.D." PO Kaiser then bent down to place the summons wrapped around the identification on the ground, next to § 87(2)(b)'s feet (encl. 17-19).

According to PO Duran, PO Kaiser tried to place § 87(2)(b)'s summons in his hand, and § 87(2)(b) said, "Fuck you. I'm not taking this." After § 87(2)(b) refused to take the summons, PO Kaiser placed it next to § 87(2)(b). PO Duran could not recall specifically where the summons was placed, aside from that it was next to § 87(2)(b) as PO Duran's attention was focused on a small crowd that had gathered (encl. 25-27).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – PO Joseph Kaiser made remarks to § 87(2)(b) based upon perceived sexual orientation.

§ 87(2)(b) alleged that PO Kaiser called him a "batty boy" over the loudspeaker of the vehicle as he drove from the location (encl. 7-9).

In his CCRB testimony, PO Kaiser testified that upon leaving the scene, he used the vehicle's loudspeaker and said, "Party's over. Time to go home" PO Kaiser stated he directed this statement to a crowd that had gathered outside the location. PO Kaiser denied calling § 87(2)(b) a "batty boy" and noted that while he had heard the word before, he was not familiar with its meaning. Similarly, PO Kaiser denied making derogatory remarks to § 87(2)(b) based upon his perceived sexual orientation (encl. 17-19).

PO Duran did not recall PO Kaiser making any statements over the vehicle's loudspeaker as they drove from the scene, and noted that he was focused on updating his memo book at this time. PO Duran did not recall hearing PO Kaiser call § 87(2)(b) a "batty boy", and was unfamiliar with the term. Similarly, PO Duran did not recall PO Kaiser make any derogatory remarks or insults toward § 87(2)(b) (encl. 25-27).

§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date